

25NNCV00941 25NNCV00941

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-11

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[TENTATIVE] ORDER DENYING DEFENDANTS' MOTION FOR LEAVE TO FILE A FIRST AMENDED ANSWER

I. INTRODUCTION

On February 11, 2025, Plaintiff ABC Grand Inc. ("Plaintiff") filed this breach of contract action against Defendants Redlands Summit, LLC ("Redlands Summit") and Dongliang Zhang ("Zhang") (collectively "Defendants"). Plaintiff alleges it loaned Redlands Summit \$100,000 pursuant to a written Loan Agreement, which Zhang personally guaranteed, and that Defendants breached the agreement by failing to repay the loan and accrued interest.

On July 16, 2026, Defendants filed the instant motion for leave to file a First Amended Answer and Affirmative Defenses. Plaintiff filed an opposition on July 29, 2026, and Defendants filed a reply on August 4, 2026.

II. LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (a) provides: "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc., § 473, subd. (a)(1); see Code Civ. Proc., § 576.)

Permissible amendments pursuant to Code of Civil Procedure section 473, subdivision (a) include amendments which add causes of action. A plaintiff that fails to plead a cause of action arising out of the transaction or occurrence that gave rise to the complaint may apply to the court for leave to amend the complaint to assert the cause of action, whether that failure was the result of oversight, inadvertence, mistake, neglect, or other cause. (Code Civ. Proc., § 426.50; see Code Civ. Proc., § 426.10, subd. (c).) The motion to amend may be filed at any time during the course of the action, on notice to the adverse party. (Id., § 426.50.)

The court has broad discretion to permit amendments to pleadings, and "the court's discretion will usually be exercised liberally to permit amendment of the pleadings." (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.) "The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (Ibid.) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend" (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530.) Prejudice includes "delay in trial, loss of critical evidence, or added costs of preparation." (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448.)

A motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading. (Cal. Rules of Court, Rule 3.1324, subd. (a)(1).) A motion to amend a pleading must also be supported by a declaration which specifies the following: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, Rule 3.1324, subd. (b).).

III. ANALYSIS

Defendants seek leave to file a First Amended Answer to add three affirmative defenses: unconscionability, unclean hands, and impossibility. Defendants contend the factual bases for these defenses were disclosed in their verified responses to Plaintiff's Form Interrogatories served on September 9, 2025. (Motion, p. 3) Defendants acknowledge that the proposed defenses are based on facts known to them for approximately ten months before the filing of the instant motion. (Motion, pp. 3-6.)

Plaintiff opposes the motion on the grounds that Defendants unreasonably delayed seeking amendment, lacked diligence, and now seek to amend their Answer on the eve of trial. (Opposition., pp. 2-3.) Plaintiff further argues that permitting amendment at this late stage may necessitate additional pleading proceedings, specifically, a demurrer, and jeopardize the September 1, 2026, trial date. (Opposition., p. 3.)

Although courts generally exercise great liberality in permitting amendment of pleadings, the Court may deny leave where there has been a long unexplained delay, lack of diligence, prejudice to the opposing party, or an amendment is sought on the eve of trial. (*Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150, 1159.) Further, even where an amendment is otherwise proper, unwarranted delay in seeking amendment after knowledge of the relevant facts may itself constitute a basis for denial. (*Roemer v. Retail Credit Co.* (1975) 44 Cal.App.3d 926, 939-941.)

Here, although Defendants have substantially complied with California Rules of Court, rule 3.1324, they have not provided an adequate explanation for their delay in seeking amendment. Defense counsel acknowledges that Defendants did not seek amendment earlier because of "the press of other business and scheduling conflicts within my office." (Wall Decl., ¶ 4.) Yet Defendants maintain that the factual bases for the proposed defenses were known and disclosed in September 2025. (Motion, p. 3; Wall Decl., ¶¶ 3-4.) Thus, this is not a situation in which newly discovered facts or developments in the litigation prompted the proposed amendment. Rather, Defendants had the information necessary to plead the defenses for approximately ten months but failed to timely seek amendment.

Moreover, the request is made on the eve of trial, with the motion being heard approximately three weeks before the September 1, 2026, trial date. Given Defendants' longstanding knowledge of the facts supporting the proposed defenses and the absence of an adequate explanation for the delay, the Court finds that Defendants have not demonstrated sufficient diligence in seeking amendment.

The Court is mindful of California's liberal policy favoring amendment. However, under these circumstances, Defendants' lack of diligence, unexplained delay, and the proximity to trial weigh against permitting amendment at this late stage. (*Hulsey*, supra, 218 Cal.App.3d at p. 1159; *Roemer*, supra, 44 Cal.App.3d at pp. 939-941.) Thus, the Court DENIES Defendants' motion for leave to file a First Amended Answer and Affirmative Defenses.

Thus, the Court DENIES Defendants' motion for leave.

IV. CONCLUSION AND ORDER

The Court DENIES Defendants' motion for leave to file a First Amended Answer.

Defendants are to give notice.

Dated: August 11, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT